



March 14, 2025

The Honorable Lynne Parker
Acting Director
Office Science and Technology Policy
1650 Pennsylvania Avenue
Washington, DC 20502

The Honorable Sethuraman Panchanathan
Director
National Science Foundation
2415 Eisenhower Avenue
Alexandria, VA 22314

Re: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Dear Acting Director Parker and Director Panchanathan:

The U.S. Chamber of Commerce (“Chamber”) appreciates the opportunity to provide comments to the Office of Science and Technology Policy (“OSTP”) and the National Science Foundation (“NSF”) on its “Request for Information (“RFI”) on the Development of an Artificial Intelligence Action Plan.”¹

The Chamber agrees with the recent Executive Order signed by President Trump which states in part that the purpose of Artificial Intelligence (“AI”) policy should be to “promote human flourishing, economic competitiveness and national security.”² AI has the potential to drive growth that will benefit individual Americans by improving their health, giving them greater access to the means of increasing their prosperity and improving the quality of life for their families.

The Chamber has seen this firsthand with the release of a report entitled *Small Business Empowered: The Impact of Technology on Small Business*.³ Between 2023 and 2024, the number of small businesses using generative AI almost doubled to 40%. 98% of small businesses are using some form of an AI tool for different functions. U.S. small businesses that are adopting AI are experiencing higher rates of sales and hiring growth than their peers who are not.⁴ Recent studies have shown that AI can boost economic growth in the United States by an additional 10-20% over the next ten

¹ 90 Fed. Reg. 9088 (February 6, 2025) available at <https://www.govinfo.gov/content/pkg/FR-2025-02-06/pdf/2025-02305.pdf>.

² *Removing Barriers to American Leadership in Artificial Intelligence*, Exec. Order No. 14179 (Jan. 23, 2025), § 2, <https://www.federalregister.gov/documents/2025/01/31/2025-02172/removing-barriers-to-american-leadership-in-artificial-intelligence>.

³ <https://www.uschamber.com/technology/artificial-intelligence/the-impact-of-technology-on-u-s-small-business>

⁴ U.S. Chamber of Commerce, “Empowering Small Business: The Impact of Technology on U.S. Small Business,” (September 15, 2024) available at <https://www.uschamber.com/assets/documents/Impact-of-Technology-on-Small-Business-Report-2024.pdf>.

years.⁵ By allow the end-users to experiment and deploy AI, prosperity and productivity will be driven through all parts of the American economy.

The need for rational policy making is critical for the American people and economy to benefit from continued AI innovation. as the Chamber concurs with what Vice President Vance recently said in his speech in Paris: “[n]ow, at this moment, we face the extraordinary prospect of a new industrial revolution, one on par with the invention of the steam engine or Bessemer steel. But it will never come to pass if overregulation deters innovators from taking the risks necessary to advance the ball....”⁶

In 2023, the Chamber’s Commission on Artificial Intelligence, Inclusion and Innovation (“Chamber Commission Report”) released its report outlining the role of AI policy making.⁷ The Chamber Commission Report highlighted the need for continued growth and innovation and proposed a policy framework that called for an inventory of existing laws and regulations that would identify gaps that could be addressed through a risk-based approach. This gap filing risk-based approach recognized that many AI activities are already covered by existing law and that broad based approached could in fact be harmful to the beneficial employment of the technology. As discussed in greater detail in this letter, the Chamber updated its AI principles in 2025⁸ to outline how issues may be addressed. Also, in 2023, the Chamber wrote to bi-partisan leaders in the Senate requesting the creation of an office for the Assistant Secretary of Commerce for Emerging Technology to coordinate non-security AI policies throughout the Federal government.

For the United States to continue reaping the benefits of this transformative technology, continued pro-growth action from the federal government is essential. As advocated by Vice President Vance, government must foster an “open regulatory environment” with the business community, and “encourage” American innovators to experiment and make unparalleled research and development investments.”⁹ We further appreciate the administration's understanding that “excessive regulations on

⁵ Seydl, J., & Linden, J. (2024, July 16). How AI can boost productivity and jump start growth. J.P. Morgan Private Bank. Retrieved from <https://privatebank.jpmorgan.com/nam/en/insights/markets-and-investing/ideas-and-insights/how-ai-can-boost-productivity-and-jump-start-growth>.

⁶ <https://www.presidency.ucsb.edu/documents/remarks-the-vice-president-the-artificial-intelligence-action-summit-paris-france>

⁷ U.S. Chamber of Commerce. *Artificial Intelligence Commission Report*. U.S. Chamber of Commerce, 9 Mar. 2023, www.uschamber.com/technology/artificial-intelligence/artificial-intelligence-commission-report.

⁸ U.S. Chamber of Commerce. *U.S. Chamber Releases Artificial Intelligence Principles*. U.S. Chamber of Commerce, 23 Sept. 2019, www.uschamber.com/technology/us-chamber-releases-artificial-intelligence-principles.

⁹ [Supra n. 2.](#)

the AI sector could kill a transformative industry just as it's taking off" and the need to encourage pro-growth AI policies.¹⁰

As the first Trump administration declared, the "United States has long been a champion and defender of the core values of freedom, guarantees of human rights, the rule of law, stability in our institutions, right to privacy, respect for intellectual property and opportunities to all to pursue their dreams. The AI technologies we develop must also reflect these fundamental American values and our devotion to helping people."¹¹

We look forward to working with the Administration on these issues and hope to provide better insight as to how AI policies are impacting the end-users of the technology. Accordingly, we offer the following recommendations to achieve the right policy balance that maximizes AI opportunity and economic growth.

I. U.S. Chamber AI Policy Principles

The U.S. Chamber of Commerce was the first trade association to develop AI policy principles ("Principles") in 2019. These Principles were initially developed to guide policymakers on how they can position the United States to take advantage of the full economic potential of AI. Over the past fifteen months, our members have actively reviewed these Principles to ensure that America remains at the forefront of AI development and deployment. The following are the Chamber's 2025 updated principles:

A. Recognize Trustworthy AI is a Partnership (Principle 1)

Fostering public trust and trustworthiness in AI technologies is necessary to advance its responsible development, deployment, and use. Trustworthy AI encompasses values such as transparency, explainability, fairness, and accountability. The speed and complexity of technological change, however, means that governments alone cannot promote trustworthy AI. The Chamber believes that governments must

¹⁰ [Remarks by the Vice President at the Artificial Intelligence Action Summit in Paris, France | The American Presidency Project](#)

¹¹ Trump Administration; *Artificial Intelligence for the American People*; Pillar Five "AI with American Values;" available at: [Artificial Intelligence for the American People](#). As President Trump recently stated in connection with the Administration's Feb. 10, 2025 Executive Order, "[e]very policy must be geared toward that which supports the American worker, the American family, and businesses, both large and small, and allows our country to compete with other nations on a very level playing field." *Fact Sheet: President Donald J. Trump Restores American Competitiveness and Security in FCPA Enforcement* (Feb. 10, 2025), <https://www.whitehouse.gov/fact-sheets/2025/02/fact-sheet-president-donald-j-trump-restores-american-competitiveness-and-security-in-fcpa-enforcement/>.

partner with the private sector, academia, and civil society when addressing issues of public concern associated with AI. We recognize and commend existing partnerships that have formed in the AI community to address these challenges, including protecting against harmful biases, ensuring democratic values, and respecting human rights. Any governance frameworks should be flexible and driven by a transparent, voluntary, and multi-stakeholder process. Finally, any governance framework should also account for and look to align with other interconnected policy frameworks such as privacy or cyber.

AI is a tool and does not exist in a legal vacuum and avoid establishing potentially duplicative and conflicting regulations that inhibit growth. Policymakers should be mindful that activities performed, and decisions aided by AI are often already accountable under existing laws. Where new public policy considerations arise, governments should consider maintaining a sector-specific approach that builds upon existing regulatory scaffolding while removing or modifying those regulations that function as a barrier to AI development, deployment, and use. In addition, governments should avoid creating a patchwork of AI policies at the subnational or international level and should coordinate across governments to advance sound and interoperable practices.

B. Adopt Risk-Based Approaches to AI Governance (Principle 2)

Governments should incorporate flexible risk-based approaches based on use cases rather than prescriptive requirements when governing the development, deployment, and use of AI technologies. An AI use case that involves a high risk should, therefore, face a higher degree of scrutiny than a use case where the risk of concrete harm to individuals is low. To avoid stifling innovation while keeping up with the rapid pace of technological change, industry-led, voluntary accountability mechanisms should recognize the different roles companies play within the AI ecosystem and focus on addressing concrete harms to individuals that can be empirically linked to the use of AI technologies. Any regulation of AI should be specific, narrowly tailored to appropriate use cases, and weighed against the economic and social benefits forfeited by its enactment.

C. Support Private and Public Investment in AI Research and Development (Principle 3)

Investment in research and development (R&D) is essential to AI innovation. Governments should encourage and incentivize this investment by partnering directly with businesses at the forefront of AI, promoting flexible governance frameworks such as regulatory sandboxes, utilizing testbeds, and funding both basic R&D and those

which spurs innovation in trustworthy AI. Policymakers should recognize that advancements in AI R&D happen within a global ecosystem where businesses, universities, and institutions collaborate across borders.

D. Build an AI-Ready Workforce (Principle 4)

AI brings significant opportunities, as well as some challenges, to the workforce. Governments should partner with businesses, universities, and other stakeholders to train and build a workforce suited for an AI economy by supporting the development of skills needed to develop, manage, and use new technologies. Governments should also look at how to leverage AI for upskilling and reskilling purposes. These investments will ensure that workers are prepared to responsibly deploy AI tools and adapt to changing workforce needs. Moreover, policymakers should take steps to attract and retain global and diverse talent.

E. Promote Open and Accessible Government Data (Principle 5)

AI requires access to large and robust data sets to function. Governments possess substantial amounts of data that should be made available and easily accessible in a structured, commonly used, and machine-readable format to accelerate the development of AI while ensuring appropriate and risk-based cybersecurity and privacy protections. Governments at all levels should improve the quality, accuracy, and usability of data sets through, for example, greater digitization, standardized documentation and formatting, and additional budgetary resources.

F. Pursue Robust and Flexible Privacy Regimes (Principle 6)

Data is critical to the development of AI, and the repurposing of personal data may impact consumer privacy. Clear and consistent privacy protections for personal privacy are, therefore, a necessary component of trustworthy AI. Governments should pursue robust but flexible data protection regimes to support data integrity that enables the collection, retention, and processing of data for AI development, deployment, and use, while ensuring that consumer privacy rights are preserved. Policymakers should look to the U.S. Chamber of Commerce's Privacy Principles as a guide for pursuing data protection rules that foster innovation.

G. Advance Intellectual Property Frameworks that Protect and Promote Innovation (Principle 7)

The AI ecosystem is highly dynamic, routinely benefiting from collaboration and open research to fuel commercial innovation, which is often built on a range of open

source and proprietary components, such as software frameworks, data, and cloud-enabled processing capabilities. Governments must provide clear and predictable standards that ensure full respect for IP protection and enforcement with respect to AI. Governments should also support an innovation-oriented approach that recognizes the strengths of an open AI ecosystem. Additionally, governments must not require companies to transfer or provide access to AI-related intellectual property, such as source code, algorithms, and data sets.

H. Commit to Cross-Border Data Flows (Principle 8)

The ability to move data across borders and access information determines the speed at which AI technologies can be developed and used in the global economy. The adoption of AI across different sectors and geographies is enabled by cloud computing, which broadens access to AI technologies, including for small and medium-size enterprises. Policies that restrict data flows, such as data localization requirements, constitute market access barriers that will diminish AI-related investment and innovation and limit access to AI technologies. Governments should steadfastly commit to keeping data flowing across international borders.

I. Abide by International Standards (Principle 9)

Industry-led, consensus-based standards, including AI technologies, are at the heart of digital innovation. The Chamber encourages policymakers to acknowledge and support the development of such standards in recognized international standards bodies and consortia. Furthermore, governments should likewise leverage industry-led standards on a voluntary basis wherever possible to facilitate the use and adoption of AI technologies and minimize the proliferation of conflicting or unaligned compliance regimes internationally.

J. Secure Benefits for Small and Medium Sized-Enterprises (New) (Principle 10)

AI technology will increasingly play a pivotal role in the success and resilience of small and medium-sized enterprises (“SMEs”) and shaping how they compete in the global marketplace. Policymakers must recognize that fostering an environment conducive to technological innovation is essential for SMEs to thrive.

K. Leverage Existing Beneficial Cyber Defense Uses of AI (New) (Principle 11)

AI is well-established in the marketplace serving as a key component in mitigation strategies employed by both enterprises and governments. The rapid progression in AI capabilities has, however, expanded the cyber threat horizon, intensifying the ongoing conflict where security experts are in a constant battle to match the pace of sophisticated technological threats. This dynamic has set the stage for a perpetual arms race between cyber defenders and their adversaries. Considering this it is imperative that any new policy framework adheres to the fundamental principle of “do no harm,” ensuring that it does not disarm cyber defenders of their AI tools which are essential for learning, adapting, and preempting threats within the ever-evolving cybersecurity threat environment.

II. Further Recommendations for AI Action Plan

Although the preceding principles are key to providing long-term and sustainable economic growth for the United States, we recommend that the AI action plan also address further specific policies:

A. The Need for a Consistent Policy Landscape

The Chamber is concerned that a fragmented policy landscape will lead to a patchwork of potentially conflicting federal and state artificial intelligence laws, adversely affecting entrepreneurs, small businesses, and the broader business community. Such a complicated regulatory environment could place small business and startups at a unique disadvantage if they are required to bear massive compliance costs.

Many of the current and proposed AI laws, particularly in states, are based on the belief that current federal regulations do not adequately address the use of technology or that a gap in the law has emerged. Therefore, we urge the administration to take action to provide the necessary clarity and guidance from relevant agencies on how existing laws currently regulate Artificial Intelligence. Should agencies identify gaps in current law, we encourage them to report them to Congress for review and action. We also urge agencies to harmonize existing legal frameworks to prevent contradictory or overlapping regulations that could impede the responsible development of AI technologies.

Congress should also prioritize asserting its constitutional authority to regulate interstate commerce to prevent a confusing state patchwork of regulations by preempting state laws, particular comprehensive AI, and privacy laws, where appropriate.

B. Policies that Promote an Open-Source AI Ecosystem

The Chamber recognizes the benefits of open-source technology. Open-source technology enables developers to build, create, and innovate across various sectors, driving future economic growth. Americans are already witnessing innovation in marketing, communication, cybersecurity, and medicine, among other fields. Access to model weights can significantly enhance safety and security improvements in artificial intelligence by providing greater transparency, allowing flaws to be quickly identified, and addressed. For this reason, the Chamber encourages the administration to invest in and build shared computing and data resources, such as the National AI Research Resource (“NAIRR”), to serve as the infrastructure for the open-source ecosystem.

C. “AI Diplomacy” Strategy

We agree with Vice President Vance’s observation that “this administration will ensure that American AI technology continues to be the gold standard worldwide and we are the partner of choice for others -- foreign countries and certainly businesses -- as they expand their own use of AI.”¹² We encourage the administration lead and engage with international organizations such as the G7, G20, WTO, and OECD, as they work to shape the global AI agenda. It is vital for the United States to work to establish AI frameworks that ensure other nations do not set standards or adopt AI policies that could undermine U.S. leadership, restrict commercial access, impede the deployment of AI-enabled products, or obstruct AI investments.

D. AI Coordinating Role

The Chamber sees great benefit in establishing a designated coordinating role within the federal government to oversee AI policies domestically. As stated earlier, the Chamber has proposed the creation of an office for the Assistant Secretary of Commerce for Emerging Technology to coordinate non-security AI policies throughout the Federal government.¹³ This role should aim to eliminate regulatory overlap or gaps. Additionally, this individual should function as the primary official working with the State Department to represent the domestic viewpoint in negotiations related to non-security international agreements concerning emerging technology and the development of a global AI framework. Their efforts should look to support shared terminologies, definitions, risk management, and common standards. A coordinated

¹² [Remarks by the Vice President at the Artificial Intelligence Action Summit in Paris, France | The American Presidency Project](#)

¹³<https://www.uschamber.com/technology/u-s-chamber-letter-on-artificial-intelligence-priorities-2>

approach would reduce ambiguity, facilitate clearer communication, streamline regulatory processes, and enhance collaboration across borders.

E. Emphasis on Regulatory Certainty

Federal policies should encourage state and local regulations that support innovation. Specifically, streamlined regulations around permitting, access to energy, and environmental processes are essential to avoid hindering AI deployment. Clarity and certainty in the regulatory environment are crucial for businesses investing in new technologies. We urge the administration to develop updated policies and guidelines that promote further investment in the development of Artificial Intelligence.

F. Strategic Investments in Advanced AI Technology

To address potential national security risks associated with advanced AI technology, investing in research to enhance the measurement of frontier model capabilities in national security-related areas is crucial. Developing narrowly tailored guidelines and security protocols for the most advanced AI models is essential. These guidelines should also be leveraged to establish shared understandings of frontier AI risks and to coordinate on international standards and security best practices. Furthermore, engaging with standards organizations, governance processes, and international bodies is vital to develop a consensus around security protocols that align with the U.S. approach.

G. Nurture Market Based Competition

The U.S. AI industry is marked by competition from large and midsize firms, as well as a thriving ecosystem of startups, ensuring that innovation continues to flourish. Ease of entry and exit is favorable for startups, particularly in software, while even capital-intensive areas like chip manufacturing maintain competitive dynamics because of heavy investment. The sector exhibits rising output, robust price competition, and a high degree of consumer choice, which are clear indicators of a competitive industry. This dynamic helps ensure that innovation benefits a wide range of users, from individuals to enterprises. For these reasons, it is important that competition agencies at home and abroad refrain from misguided enforcement activities.

H. Strong Standards Development Ecosystem

The United States must support a strong standards development ecosystem to ensure U.S. and democratic values are at the forefront of such standards. Standard

development organizations are uniquely able to develop best practice approaches developed collaboratively by the private sector, technical experts, civil society, and the government. Such nonbinding, self-regulatory approaches provide the flexibility of keeping up with rapidly changing technology as opposed to laws that risk becoming outdated quickly.

I. Support NIST's Risk Management Framework

The National Institute of Science and Technology (“NIST”) has been at the forefront of engaging with domestic and international organizations to develop a globally recognized framework to better manage the risk of Artificial Intelligence. The value of this work can be seen through international harmonization and alignment to our AI Risk Management Framework (“RMF”) with guidelines from both the Japan¹⁴ and Singapore.¹⁵ We encourage further efforts to align the AI RMF with other international frameworks.

J. Ensure that the U.S. Remains the Top Destination for the World’s Tech Talent

The United States currently faces a significant shortage of highly skilled programmers and developers to help develop and deploy responsible AI. Our outdated immigration laws are a substantial obstacle for U.S. companies to overcome in meeting their high-skilled workforce needs. For the U.S. to maintain its global leadership in these innovative fields, we would encourage the administration to work with Congress to increase immigrant and nonimmigrant visas for these highly skilled, highly educated workers.

K. National Science Foundation should develop and routinely update K-12 Education guidelines.

The National Science Foundation should routinely develop reports on education guidelines. These reports should be designed with input from state and local educational authorities. It should concentrate on establishing and providing essential guidelines to better prepare students for the use of AI and machine learning. There should be a separate report, developed with higher education institutions, which provides similar recommendations for colleges, universities, and graduate schools.

¹⁴ *AISI Crosswalk to RMF GfB, Version 1.0* (AISI 2023), https://aisi.go.jp/assets/pdf/AISI_Crosswalk2_RMF_GfB_ver1.0.pdf.

¹⁵ *NIST-IMDA Joint Mapping Exercise* (IMDA 2023), <https://www.imda.gov.sg/resources/press-releases-factsheets-and-speeches/press-releases/2023/nist-imda-joint-mapping-exercise>.

These reports should follow the standard Request for Information and Administrative Procedure Act processes, including opportunities for public comment.

L. Importance of data governance practices to AI governance

The business community supports policies that support sound data governance practices that utilize high-quality data sets that are also important to help ensure that training data is secure, accurate, relevant, complete, and consistent. High-quality data sets are a critical precursor for precise and robust outputs. To ensure this high-quality data, we urge Congress to pass preemptive comprehensive privacy legislation based on laws in states like Texas and Kentucky that provide consumers data rights while enabling data to be used to improve and fine-tune AI systems.

M. Advance Digital Trade Rules

Strong digital trade rules serve to ensure our trading partners remain open to the deployment of AI in American goods and services. Such rules are essential to prevent countries from using regulation to unfairly exclude U.S. companies from accessing foreign markets, thereby harming U.S. workers, and diminishing our competitiveness.

N. The need for balanced export control policies

To effectively limit adversary access to critical technologies, regularly reviewing, analyzing, and updating the use of export controls is essential. However, to ensure a balanced approach that does not put unnecessary and excessively burdensome requirements on U.S. companies, the Bureau of Industry and Security (BIS) will need to be adequately resourced and modernized, to monitor the AI supply chain and counter-smuggling and other technology diversion efforts to foreign adversaries. It is also essential to implement these actions carefully to avoid creating competitive disadvantages for U.S. companies, particularly in instances of foreign availability of like technologies. A better resourced and more modernized BIS that can address foreign adversary concerns in an effective but balanced manner, coupled with streamlining of export licensing processes for U.S. companies, will be vital to ensure their competitiveness in the global market.

O. R&D Tax Credits

Reauthorizing R&D tax credits, as part of extending the Tax Cuts and Job Growth Act of 2017, is crucial for fostering long-term sustainable technology growth in

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the United States. These pro-growth policies would ensure that the country has the necessary capital and investment to drive innovation and maintain a competitive edge in the global technology landscape. By supporting research and development, the U.S. can continue to advance in critical areas such as artificial intelligence and quantum.

Conclusion

The Chamber appreciates OSTP's and NSF's role in developing a robust action plan to ensure the United States stays the "gold standard" of Artificial Intelligence. We believe that U.S. leadership is vital in protecting U.S. business interest domestically and internationally. The Chamber stands ready and willing to work with OSTP and NSF to ensure that the United States remains the leader in artificial intelligence.

Sincerely,

Tom Quaadman
Senior Vice President
Economic Policy
U.S. Chamber of Commerce

cc: The Honorable David Sacks,
Chair, President's Council of Advisors on
Science and Technology